

Maldives 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in the Maldives during the year.

Significant human rights issues included credible reports of serious restrictions on freedom of expression and media, including threats of violence against journalists and censorship, and trafficking in persons.

The government took credible steps to investigate officials who committed human rights abuses.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression, including for members of the press and other media, except on religious matters, and the government generally respected this right.

The constitution prohibited utterances contrary to tenets of Islam or the government's religious policies. The law criminalized the offense of "criticizing Islam" including use of a communications device to criticize Islam, the Quran, the Prophet Muhammad, or the Sunnah (traditions and practices of Muhammad).

Ministry of Youth Empowerment, Information, and Arts regulations prohibited publishing literary material without authorization from the National Bureau of Classification. The regulations defined publication of literary material as "any writing, photograph, or drawing that has been made publicly accessible electronically or by way of printing, including publicizing or circulating on the internet."

Physical Attacks, Imprisonment, and Pressure

Journalists reported as concerns impunity and lack of arrests or action in cases of violence and harassment of media personnel reported to authorities during the year. Independent media were nonetheless active

and expressed a wide variety of views. Criticism of the government and debates on societal problems were commonplace, but media did not question Islamic values or the government's policies on religion. Civil society and journalist sources stated media practiced self-censorship on matters related to Islam due to fears of harassment or being labeled "anti-Islamic."

In March 2023, chief editor of the online news outlet *Adhadhu*, Hussain Fiyaz Moosa, received anonymous death threats hours after his newspaper published an article on gangs and religious extremism. The Maldives Police Service (MPS) reported the case had been closed as the suspect was not identified and Fiyaz did not wish to pursue prosecution. As of July, authorities continued to investigate the case but had not identified perpetrators.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

The law allowed authorities to force journalists to reveal their sources, but authorities did not routinely utilize this provision. Journalists continued to express concern regarding a provision in the Evidence Act that could compel journalists to reveal their sources when the court deemed the information presented by the journalist to be related to acts of terrorism or national security offenses. The provision applied when the court determined that

factors described in it were more likely than not to have happened, a civil standard of proof.

The law sanctioned anyone who violated an order to disclose a source with imprisonment of up to three months, a fine, or both. There were prohibitions on the import of foreign publications or materials applied to pornography or material otherwise deemed objectionable to Islamic values, including Bibles and idols for worship intended for public distribution. Tourists destined for resort islands were not prohibited from carrying Bibles and other religious items for their personal use.

In February, the Maldives Media Council (MMC) assured action would be taken against three unregistered news websites in response to 16 complaints from the President's Office and government ministries. As of October, the MMC continued to investigate the complaints and had not taken further action. Journalists reported government authorities and state-owned enterprises routinely failed to provide information in response to formal requests submitted under the Right to Information Act.

b. Worker Rights

Freedom of Association and Collective Bargaining

The constitution provided for workers' freedom of association, although there was no specific law protecting the right to unionize. Organizations

that wished to act as unions registered under the Associations Act. The act did not provide for independent unions, collective bargaining, or the conduct of strikes. As a result, the court system refused to officially recognize trade unions. Worker organizations were usually treated as civil society organizations or associations without the right to engage in collective bargaining. Police and armed forces did not have the right to form unions. Given the formal absence of unions, there were no reports of government enforcement of laws respecting their establishment or operation.

In January, the president ratified the Industrial Relations Act, which provided legal recognition for labor unions for the first time and established a structured framework for collective bargaining and expanded on the fundamental right to strike or undertake industrial action as guaranteed under the constitution. The act required employees to provide 48 hours' notice before initiating a strike or undertaking industrial action, which included work stoppages, peaceful assemblies, or refraining from working outside official hours. The act prohibited discrimination regarding pay, training, advancements, employment conditions, termination based on the employee's past, and current or potential membership in a union. The act did not impose legal restrictions that limited collective bargaining.

The government did not always enforce applicable laws. Resources, inspections, and remediation were inadequate, and penalties were not

commensurate with other laws involving the denial of civil rights and were sometimes applied against violators.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The law provided a minimum wage in most sectors, and it was more than the official estimate for the poverty income level. Foreign workers were excluded from the Minimum Wage Order, which outlined the scope and amount of the minimum wage. Minimum wage price floors were different for the public sector and for small, medium, and large businesses in the private sector. Wages in the private sector were commonly set by contract between employers and employees and were based on rates for similar work in the public sector.

The law established maximum hours of work, overtime, annual and sick leave, maternity leave, and guidelines for workplace safety. Civil servants were allowed six months of maternity leave and one month's paternity leave. The law provided for a 48-hour per week limit on work with a compulsory 24-hour break if employees worked six days consecutively.

Certain provisions in the law, such as overtime and public holiday pay, did not apply to emergency workers, air and sea crews, executive staff of any company, and workers who were on call.

Occupational Safety and Health

The law mandated implementation of a safe workplace, procurement of secure tools and machinery, verification of equipment safety, use of protective equipment to mitigate health hazards, employee training in the use of protective gear, and appropriate medical care, but civil society reported a lack of adequate safety measures and that workers were often not provided safety equipment in the construction sector.

In January, the president ratified the Occupational Safety and Health Act, which provided for obligations for employers on workplace safety standards, compensation frameworks, and penalties for noncompliance. Employers were required to ensure compliance with the act by January 2025. There were no reports the government took any action under the act.

The law protected workers who removed themselves from situations that endangered health or safety without jeopardy to their employment.

Wage, Hour, and OSH Enforcement

The government did not effectively enforce minimum wage or OSH-related laws; it effectively enforced overtime laws. Penalties for violations were not

commensurate with laws for similar crimes and were rarely applied against violators. Penalties for overtime violations were commensurate with those for similar crimes, such as fraud.

The Labor Relations Authority (LRA) and Employment Tribunal were charged with implementing employment law, and the LRA conducted workplace investigations and provided dispute resolution mechanisms to address complaints from workers. The most common findings related to missing or problematic provisions in employment contracts and job descriptions, overtime and other pay, and problems related to leave. Inspectors had the authority to make unannounced inspections and initiate sanctions. The LRA typically gave employers one to three months to correct problems but lacked sufficient labor inspectors and travel funding to enforce compliance.

The law required employers to provide employees with safety equipment such as helmets, belts, and masks in the construction sector, but Nongovernmental organizations (NGOs) reported the government failed to monitor implementation of these standards. All employers were required to provide health insurance for foreign workers.

According to the government, 19 percent of the total working population was engaged in informal employment in 2023, with 62 percent of those self-employed and not covered by wage, hour, or OSH inspections. There was no reliable information on informal employment. The LRA was authorized to inspect any workspace with employees but reported it did not routinely

inspect workspaces of domestic workers. It did investigate complaints filed by domestic workers.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

In June, the president dissolved the Presidential Commission on Enforced Disappearances and Deaths, established in 2018 by the previous government to independently investigate unresolved killings, enforced disappearances, and abductions between January 2012 and November 2018. Local NGOs expressed concern the commission was dissolved without having successfully prosecuted any individuals in relation to the dozens of cases investigated, including the 2014 disappearance of reporter Ahmed Rilwan. Prior to the commission's dissolution, local and international NGOs called on the government to ensure the findings of the commission were disclosed to the public and the families of the victims; however, these findings had not been made public by year's end.

Prolonged Detention without Charges

The constitution and law prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their

arrest or detention in court. The government generally observed these requirements.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution and law prohibited such practices, but there were credible reports government officials employed them. The law permitted flogging and other forms of corporal punishment.

As of October, the Human Rights Commission of Maldives (HRCM) reported receiving 90 complaints of torture, of which the HRCM continued investigating 45 cases, closed 24 due to lack of evidence, and did not register 13 of the complaints as official cases for investigation. As of

October, the HRCM continued to investigate 11 complaints of torture received in 2023 and had sought charges in three of more than 100 total complaints. Of these the prosecutor general declined to press charges on two cases and had yet to decide on whether to raise charges in the third case as of October. The MPS Professional Standards Command reported investigating two complaints of at least two police officers subjecting individuals to torture as of July. The MPS reported one case was closed without action due to lack of evidence, while the sole police officer identified in the second case was counseled and reported no further disciplinary action. As of July, the Prosecutor General's Office reported receiving 27 cases of torture for consideration of charges, 13 of which involved torture while in state custody and nine involved incidents occurring during arrest by police. Of these, the Prosecutor General's Office did not proceed with charges in two cases and returned the remaining 25 for further investigation.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Marriage

The law prohibited any marriage of a person younger than age 18. NGOs reported anecdotal evidence of some child marriages conducted outside of the legal system.

c. Protection to Refugees

The Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations reported difficulty working with the government in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern.

Provision of First Asylum

The law did not provide for granting asylum or refugee status, and the government did not have a system for providing protection to refugees. The government reported the Ministry of Foreign Affairs coordinated with UNHCR to attend to a foreign national and their family seeking extension of their stay in Maldives on humanitarian grounds, but the family was successfully resettled in a third country in August.

d. Acts of Antisemitism and Antisemitic Incitement

The public practice of religion other than Islam was prohibited by law, and there were no reliable estimates on the number of Jewish residents in the

country. There were no reports of antisemitic incidents.